

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JURARD ST. HILLAIRE and CODY FORREST,

SUMMONS

Plaintiffs, Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD POLICE
DETECTIVE JESUS CAPO, Shield No. 1906, NYPD
POLICE DETECTIVE CHRISTOPHER BRUNO, Shield
No. 2577, and NYPD POLICE OFFICERS JOHN/JANE
DOES NUMBERS 1-10,Plaintiffs designate New York
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 24, 2021

Yours, etc.

*Caitlin Robin*CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorneys for Plaintiffs
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(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE DETECTIVE JESUS CAPO, SHIELD NO. 1906, 539 Criminal
Enterprise Investigation Section; 1 Police Plaza, New York, NY 10038

NYPD POLICE DETECTIVE CHRISTOPHER BRUNO, SHIELD NO. 2577, 539
Command; 1 Police Plaza, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JURARD ST. HILLAIRE and CODY FORREST,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE
DETECTIVE JESUS CAPO, Shield No. 1906, NYPD
POLICE DETECTIVE CHRISTOPHER BRUNO, Shield
No. 2577, and NYPD POLICE OFFICERS JOHN/JANE
DOES NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants

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Plaintiffs JURARD ST. HILLAIRE and CODY FORREST, by their attorneys, Caitlin Robin & Associates, PLLC, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 1st, 2020, at approximately 9:00 p.m., plaintiffs JURARD ST. HILLAIRE and CODY FORREST, while lawfully and peacefully protesting in the vicinity of 655 Madison Avenue in New York, New York, were subject to unlawful stop, frisk, search, false arrest, and false imprisonment by Defendant NYPD Officers. Plaintiffs were then unlawfully detained at an NYPD Precinct and Manhattan Central Bookings for approximately 48 hours until they were arraigned in criminal court, charged with crimes they did not commit, and released on their own recognizances. All charges falsely made against Plaintiffs were thereafter dismissed and sealed in their entirety on or around March 18, 2021. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully stopped, frisked, searched, subjected to excessive force, falsely arrested, falsely imprisoned, and denied Plaintiffs the right to due process and fair trial in violation of the First, Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff JURARD ST. HILLAIRE (“Mr. Hillaire”) is a resident of the State of New York.

3. Plaintiff CODY FORREST (“Mr. Forrest”) is a resident of the State of New York.

4. NYPD POLICE DETECTIVE JESUS CAPO, Shield No. 1906, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. NYPD POLICE DETECTIVE JESUS CAPO, Shield No. 1906, was at all times relevant herein, assigned to the 539 Criminal Enterprise Investigation Section.

6. NYPD POLICE DETECTIVE JESUS CAPO, Shield No. 1906, is being sued in his individual and official capacities.

7. NYPD POLICE DETECTIVE CHRISTOPHER BRUNO, Shield No. 2577, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. NYPD POLICE DETECTIVE CHRISTOPHER BRUNO, Shield No. 2577, was at all times relevant herein, assigned to the 539 Command.

9. NYPD POLICE DETECTIVE CHRISTOPHER BRUNO, Shield No. 2577, is being sued in his individual and official capacities.

10. NYPD POLICE OFFICERS JOHN/JANE DOES NUMBERS 1-10, are and were at all times relevant herein, officers, employees, and agents of the New York City Police Department.

11. NYPD POLICE OFFICERS JOHN/JANE DOES NUMBERS 1-10, are being sued in their individual and official capacities.

12. At all times relevant herein, the individual defendant(s) were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department,

which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On June 1st, 2020, at approximately 9:00 P.M., Plaintiffs were lawfully present in the vicinity of 655 Madison Avenue in New York, New York, when the Defendant Police Officers unlawfully stopped, frisked, searched, arrested, and imprisoned Plaintiffs without probable cause or legal justification.

19. Plaintiffs had joined a peaceful protest in Manhattan at approximately 6:30p.m. on the evening of June 1st, 2020.

20. As they neared the vicinity of 655 Madison Avenue, a white van pulled up to them and four defendant officers jumped out, who then accused them of stealing from a nearby store.

21. It was at this point that the defendant officers began to arrest the plaintiffs, cuffing them with metal handcuffs and subjecting them to unlawful pat-down search, at which time no illegal contraband was found.

22. Plaintiffs committed no crime and were within their full First Amendment right to peacefully assemble and protest on June 1st, 2020.

23. At no point during their unlawful arrest were the Plaintiffs resistant or combative to Defendant Officers.

24. Nevertheless, Plaintiffs were arrested by defendant officers, tightly restrained with metal handcuffs, and subject to unlawful pat-down search.

25. Plaintiffs were then placed in the back of a police van and transported to an NYPD Precinct against their will, where they were fingerprinted, photographed, and placed in a holding cell.

26. After several hours at the precinct, plaintiffs were again transported against their will to Manhattan Central Bookings where they were unlawfully fingerprinted, photographed, subjected to unlawful search, and detained in a holding cell.

27. The defendant officers provided the New York County District Attorney's office with the false, misleading, and/or incomplete information that Plaintiffs committed a crime.

28. Specifically, the defendant officers provided the New York County District Attorney's office with the false, misleading, and/or incomplete information that Plaintiffs committed the crime of Criminal Possession of Stolen Property.

29. On June 3rd, 2020, after approximately 48 hours in unlawful police custody, the plaintiffs were arraigned in criminal court and released on their own recognizances.

30. Thereafter, on or around March 18, 2021, all charges against Plaintiffs were dismissed and sealed.

31. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably stopping, frisking, using excessive force upon, and unlawfully arresting and detaining the Plaintiffs.

32. The unlawful stop, frisk, assault, battery, use of excessive force, unlawful arrest, unlawful imprisonment, and denial of Plaintiffs' right to peacefully assemble and protest by the individually named defendants caused Plaintiffs to sustain psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' First Amendment Rights

33. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.

34. The illegal block of demonstration employed by defendants herein terminated Plaintiffs' right to peacefully assemble and protest through means intentionally applied.

35. The conduct of defendants in stopping Plaintiffs from peacefully protesting was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

36. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and of the United States Constitution.

37. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of new York and the New York City Police Department, which are therefore responsible for their conduct.

38. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION

Unlawful Stop

39. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

40. The illegal approach, pursuit, and stop employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

41. The conduct of defendants in stopping and blocking Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

42. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Violation of the Plaintiffs' Fourth and Fourteenth Amendment Rights

45. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

46. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment of the United States.

47. As a result of the aforementioned conduct of the defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment

48. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

49. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

50. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FIFTH CAUSE OF ACTION

Unlawful Stop and Frisk

53. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

54. The illegal approach, pursuit, stop and frisk employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

55. The conduct of defendants in stopping, frisking, and searching Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

56. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Unlawful Search

59. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

60. The illegal approach, pursuit, stop, and search employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

61. Defendants lacked probable cause to search Plaintiffs.

62. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Violation of Plaintiffs' Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

65. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

66. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

67. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

68. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

69. In withholding/creating false evidence against Plaintiffs JURARD ST. HILLAIRE and CODY FORREST, and in providing/withholding information with respect thereto, defendants violated Plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

70. As a result of the foregoing, Plaintiffs JURARD ST. HILLAIRE and CODY FORREST sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Violation of Plaintiffs' Fourth And Fourteenth Amendment Rights

73. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

74. The use of excessive force by defendants by, amongst other things, grabbing Plaintiffs and tightly handcuffing them, constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

75. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

NINTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

76. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

77. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs, JURARD ST. HILLAIRE and CODY FORREST.

78. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed Plaintiffs by the laws and Constitution of the State of New York.

79. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

83. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

84. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

85. Defendants commenced and continued a criminal proceeding against Plaintiffs.

86. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiffs and for the charges for which they were prosecuted.

87. The prosecution and criminal proceedings against the Plaintiffs were terminated on the aforementioned date.

88. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

91. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

92. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

93. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION

Failure to Intervene

94. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

95. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

96. Defendants failed to intervene to prevent the unlawful conduct described herein.

97. As a result of the foregoing, Plaintiffs' liberty was restricted, their rights were violated, they were put in fear for their safety, falsely arrested and unlawfully imprisoned, and psychologically traumatized.

98. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

100. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

101. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

102. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs JURARD ST. HILLAIRE and CODY FORREST demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 24, 2021

By: *Caitlin Robin*
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorneys for Plaintiffs
30 Broad Street Suite 702
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TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE DETECTIVE JESUS CAPO, SHIELD NO. 1906, 539 Criminal
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Command; 1 Police Plaza, New York, NY 10038

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
August 24, 2021

Caitlin Robin

CAITLIN ROBIN